



**PLANNING &
DEVELOPMENT**

2101 O'Neil Avenue
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cheyennecity.org

MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Morgan Dennis
Subject: PUDC-26-57 Darnell Homesite 2nd Filing – Final Plat
Date: May 6, 2026

Background:

The item for consideration is a Final Plat. This is approved by Resolution.

The proposed Governing Body review schedule is as follows:

- Introduction and Referral 5/11/2026
- Public Services Committee 5/18/2026
- Final Consideration 5/26/2023

Planning Commission Recommendation:

The Planning Commission heard this item at their May 4, 2026, meeting and recommended the Governing Body approve this application.

The Planning Commission Staff report is attached and has not been changed.

Public Comment

As of the creation of this memo (May 6, 2026), Staff has received no inquiries or comments from the public on this project. The project page on the website has received 37 views and no comments.

Attachments:

1. Resolution
2. Planning Commission Staff Report

RESOLUTION NO. _____

ENTITLED: “A RESOLUTION AUTHORIZING THE MAYOR AND THE CITY CLERK TO SIGN A FINAL PLAT FOR DARNELL HOMESITE 2ND FILING, CITY OF CHEYENNE, LARAMIE COUNTY, WYOMING, LOCATED WEST OF RIDGE ROAD AND EAST OF DARNELL PLACE.”

WHEREAS, Nettford Properties LLC, has subdivided certain land located west of Ridge Road and east of Darnell Place;

WHEREAS, Nettford Properties LLC, the owner of the above-described land, has caused a subdivision plat of said land to be prepared, acknowledged, and certified, particularly describing the lots, blocks, easements and rights-of-way contained therein; and

WHEREAS, the above-described subdivision plat has been presented to the City of Cheyenne Planning Commission for consideration, the Planning Commission has recommended approval of said plat to the Governing Body, and the plat has been duly executed by the Development Office.

NOW, THEREFORE BE IT RESOLVED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING, that the subdivision described as Darnell Homesite 2nd Filing, Cheyenne, Wyoming, be and the same is hereby approved and confirmed as presented, and that the Mayor and the City Clerk are hereby authorized, empowered, and directed to execute the final plat.

PRESENTED, READ AND ADOPTED THIS _____ DAY OF _____, 2026.

Patrick Collins, Mayor

(SEAL)

ATTEST:

Kylie Soden, City Clerk

CITY OF
CHEYENNE
— PLANNING & DEVELOPMENT —

CITY OF CHEYENNE PLANNING COMMISSION

May 4, 2026

STAFF REPORT

FILE: PUDC-26-57: Darnell Homesite 2nd Filing (Expedited Review)

REQUEST: Subdivision of one lot into 5 lots.

LOCATION: 4320 Ridge Rd

APPLICANT: Brandon Swain

OWNER: Nettford Properties

ZONING: MR – Medium-density Residential.

PURPOSE: A plat creating 5 Lots for development.

PREPARED BY: Morgan Dennis, Planner I



RECOMMENDED MOTION:

Move to **approve** the Darnell Homesite 2nd Filing Preliminary Plat, advancing the Final Plat to the Governing Body with conditions:

1. Water and sewer service line easement needs to meet Board of Public Utilities' request for a wider easement.

APPLICABLE CITY CODE SECTION(S) AND PLANS:

- UDC 2.1.2 Preliminary Plat Approval
- UDC 2.1.3 Final Plat Approval
- UDC Article 4 Subdivisions
- UDC Article 5 Zoning Regulations
- PlanCheyenne

BACKGROUND:

The applicant is requesting approval of a preliminary plat for roughly 1.02 acres of land. The proposed plat would subdivide the parcel into 5. These four of these lots would be considered DD7 Lot and the remaining lot would be considered DD4 in the MR zone.

SURROUNDING LAND USE AND ZONING:

	Future Land Use Designation	Zoning	Land Use
Subject Site	Urban Residential	MR Medium-density Residential	Commercial Building/Vacant
North	Urban Residential	MR Medium-density Residential	Single-family residential dwelling
South	Urban Residential	MR Medium-density Residential and CB Community Business	Single-family residential dwelling and Auto Service Repair
East	Mixed-Use Residential, Community Business	HR - High-density Residential, NB Neighborhood Business	Vacant
West	Public and Urban Residential	MR Medium-density Residential and P Public	Single-family residential dwelling and Cahill Park

ANALYSIS OF APPLICATION CONFORMANCE WITH REVIEW CRITERIA:

Should the Planning Commission wish to recommend approval of the Expedited Preliminary Plat, the Commission must make the following findings required in UDC 2.1.2.d and 2.1.3.d – a detailed analysis of which is below:

- 1) **The application is in accordance with the development policies and physical patterns identified in the Comprehensive Plan. (UDC 2.1.2.d.1)**

On the future land use map found in PlanCheyenne, the subject land and majority of surrounding land is designated as Urban Residential with an additional significant designation being Mixed-Use Residential. The Urban Residential designation encourages a range of residential uses. The proposed plat is to provide additional single-family residential to the area. Mixed-Use Residential is meant for mixed-use purposes with an emphasis on residential development and supporting commercial developments..

Foundation 1 of PlanCheyenne encourages community growth. This development is in response to market demands and is within the Urban Service Boundary. The development patterns proposed by this plat are compatible with the designations found on the future land use map.

The application **complies** with this review criterion.

2) The application reflects sound planning and urban design principles with respect to existing and potential future development in the vicinity, including consideration of current and future streets, open spaces, blocks and lots, and public utilities or facilities. (UDC 2.1.2.d.2)

The proposed plat subdivides a larger parcel into five parcels. Four of these parcels are proposed for residential development. For the remaining lot, potential development is undetermined at this moment. The four parcels are for residential have a smaller frontage than surrounding lots but had the same lot area as surrounding lots.

The application **complies** with this review criterion.

3) The division of land meets the purposes, intent, and all applicable standards in Article 4. (UDC 2.1.2.d.3)

Community Facility Fees (4.2):

For fees based on acreage, the area of the property is pro-rated to the nearest tenth of an acre. Lands reserved as unbuildable (for right-of-way, detention, parks, remainder lots, etc), are exempt from fees. Per UDC Section 4.2.5, Table 4-2, Land acquisition, Infrastructure, and Enhancement Fees are all payable at the issuance of a building permit for each structure.

Transportation Network (4.3):

This plat is not creating any new streets. Existing access to the larger lot exists off Ridge Road at two different access points. Each of the new, smaller lots would be accessed from Darnell Place.

Open Space (4.4):

Cahill Park is located less than 400 ft from property, which would allow for infill residential development to be exempt from Open Space requirement per UDC 4.4.2.b.3.

Required Improvements (4.5):

The plat provides a utility easement, currently the existing easement is 10 feet. The water and sewer lines need to be 10 feet apart by BOPU's request. Otherwise, this plat appears to be able to provide all required utilities to the lots within this development.

Public Safety Fees (4.6):

Public Safety Fees are required at the time of construction of any residential building on any of the proposed lots. Per UDC Section 4.6.3.b, Public Safety Fees are payable at the issuance of a building permit for each structure.

The application **complies** with this review criterion.

- 4) Any phasing proposed in the application is clearly indicated and demonstrates a logical and well-planned development pattern. This may include consideration of amenities and public facilities of the subdivision within each phase compared to the anticipated timing or the likelihood of future phases being constructed as planned. (UDC 2.1.2.d.4)**

No specific phasing is proposed with this project.

Review criterion **not applicable**.

- 5) The impacts identified in specific studies or technical reports that were prepared or requested to be prepared in association with the application, and whether the findings and recommendations of these reports, or any modifications or conditions on approval of the application, can mitigate these impacts. (UDC 2.1.2.d.5)**

Drainage:

A drainage study was submitted and reviewed. There were no concerns with drainage at the plat level for the project as presented.

Traffic:

A transportation study was submitted and reviewed. There were no concerns with traffic at the plat level for the project as presented.

The application **complies** with this review criterion.

- 6) Lots proposed for development shall be buildable lots according to the existing or proposed zoning district standards, result in design and development patterns that meet the Intent and Applicability statements of the existing or proposed zoning district, and not aggravate nonconforming setbacks or currently adopted building and fire code access and separation requirements. (UDC 2.1.2.d.6)**

All lots proposed for development are buildable lots within the MR zone district. It is noted that the proposed lots are smaller than the surrounding lots. All the residential lots are located within the MR zone district. The Intent and Applicability of the MR zone district is for a mix of density and dwelling types in an area where more compact neighborhood development patterns are desired.

The application **complies** with this review criterion.

7) All parcels not proposed as buildable lots and which are not dedicated to and accepted by the City shall have a clearly defined entity responsible for ongoing maintenance. (UDC 2.1.2.d.7)

All proposed lots are proposed as buildable lots. The Plat does not propose any lots subject to this criterion.

Review criterion **not applicable**.

8) The application will not create any undue influence on existing or potential development for adjacent property considering the existing zoning and Comprehensive Plan policies for that property. (UDC 2.1.2.d.8)

This plat will not create any undue influence on existing or potential development. There are streets on two sides of the site. South of the subject site, there are two lots. One of the lots is residential and the other is an auto service shop. Properties to the north and west are single-family houses.

East of the property is vacant land with no development plans at this time. The vacant land is within the HR zone district with a Mixed-Use Residential designation from the Future Land Use map. Expected potential development for the site could be high-density residential. The only part of the plat facing the vacant land is remaining the same as it previously operated. This plat would not create any undue influence on potential development to the vacant land.

The application **complies** with this review criterion.

9) The application is not harmful to the public health, safety, and welfare. (UDC 2.1.2.d.9)

City staff is satisfied that this proposed plat would not adversely affect the public health, safety, or general welfare.

The application **complies** with this review criterion.

10) Remainder lot(s) shall be clearly identified on the preliminary plat and shall not be developed or proposed for development for purposes. Remainder lot(s) shall be noted and described on all plats either graphically or by legal description. (UDC 2.1.2.d.10)

Remainder lots are not proposed with this plat.

The application **complies** with this review criterion.

11) The layout and design of the final plat is in substantial compliance with the approved preliminary plat considering the number of lots or parcels, street and block layout, and access, and any deviations in the final plat brings the application in further compliance with the Comprehensive Plan. (UDC 2.1.3.d.1)

The Final Plat submitted with the application is substantially similar to the Preliminary Plat submitted.

The application **complies** with this review criterion.

12) The application meets any conditions or modifications of the approved preliminary plat. (UDC 2.1.3.d.2)

Through staff's review, it is noted that plat is needed to meet Board of Public Utilities request of a minimum of 10 feet separation between water and sewer service lines.

The application **complies** with this review criterion, with conditions.

13) The application meets the purposes, intent, and applicable standards of Article 4. (UDC 2.1.3.d.3)

As a concurrent Preliminary and Final Plat application, this Final Plat review criterion is covered by the equivalent Preliminary Plat review criterion (subsection 3 above).

The application **complies** with this review criterion.

CONFORMANCE WITH APPLICABLE PLANS:

The project is located in an area covered by the following plans:

- PlanCheyenne

Conformance with PlanCheyenne is covered by review criterion 1.

PUBLIC NOTICE AND PUBLIC COMMENTS RECEIVED:

Although projects have public notice and the opportunity for public comments, projects are required to be approved or denied based on the review criteria (listed above). Public comments relevant to the review criteria may assist the review and discussion on the application.

The public was given notice of the project in the following ways:

- **Legal Notice** in the Wyoming Tribune Eagle published on April 19, 2026.
- **Posted Notice** Evidence of posted notice was provided showing that the signs were posted on April 27, 2026.
- **Internet Posting** on connect.cheyennecity.org on March 18, 2026.

As of the publication of the Staff Report (March 28, 2025), Staff has received no inquiries or comments from the public on this project. The project page on the website has received 49 views and no comments.

STAFF REVIEW:

Through the review process, comments were received regarding the following issues:

1. Technical correction

CONCLUSION:

Staff analysis is that the application meets the review criteria and therefore recommends approval of the expedited plat application with condition of meeting Board of Public Utilities request for a wider service line easement.

ALTERNATIVES:

1. Recommend approval of the expedited preliminary plat, forwarding the Final Plat to the Governing Body.
2. Recommend approval of the preliminary plat with conditions and that a final plat addressing the conditions of approval be prepared and presented to the Governing Body.
3. Recommend approval of the preliminary plat as submitted by the applicant and forward the preliminary plat to the Governing Body.
4. Recommend approval of the preliminary plat subject to staff's recommended conditions and forward the preliminary plat to the Governing Body.
5. Recommend denial of the preliminary plat based on findings of denial. The Planning Commission must conclude that the project does not meet all the review criteria. As part of the motion, findings for denial must be stated.
6. Postpone the project until issues identified during the meeting can be resolved.

General Information Regarding Alternatives:

The Planning Commission may modify staff's recommended conditions, delete conditions, add conditions, or decide contrary to staff's recommendation. In the event conditions are modified, the conditions shall relate to applicable review criteria. In the event that the Commission acts contrary to staff's recommendation or modifies conditions of approval, the Commission shall cite specific reasons (based on the review criteria) for approval or denial.

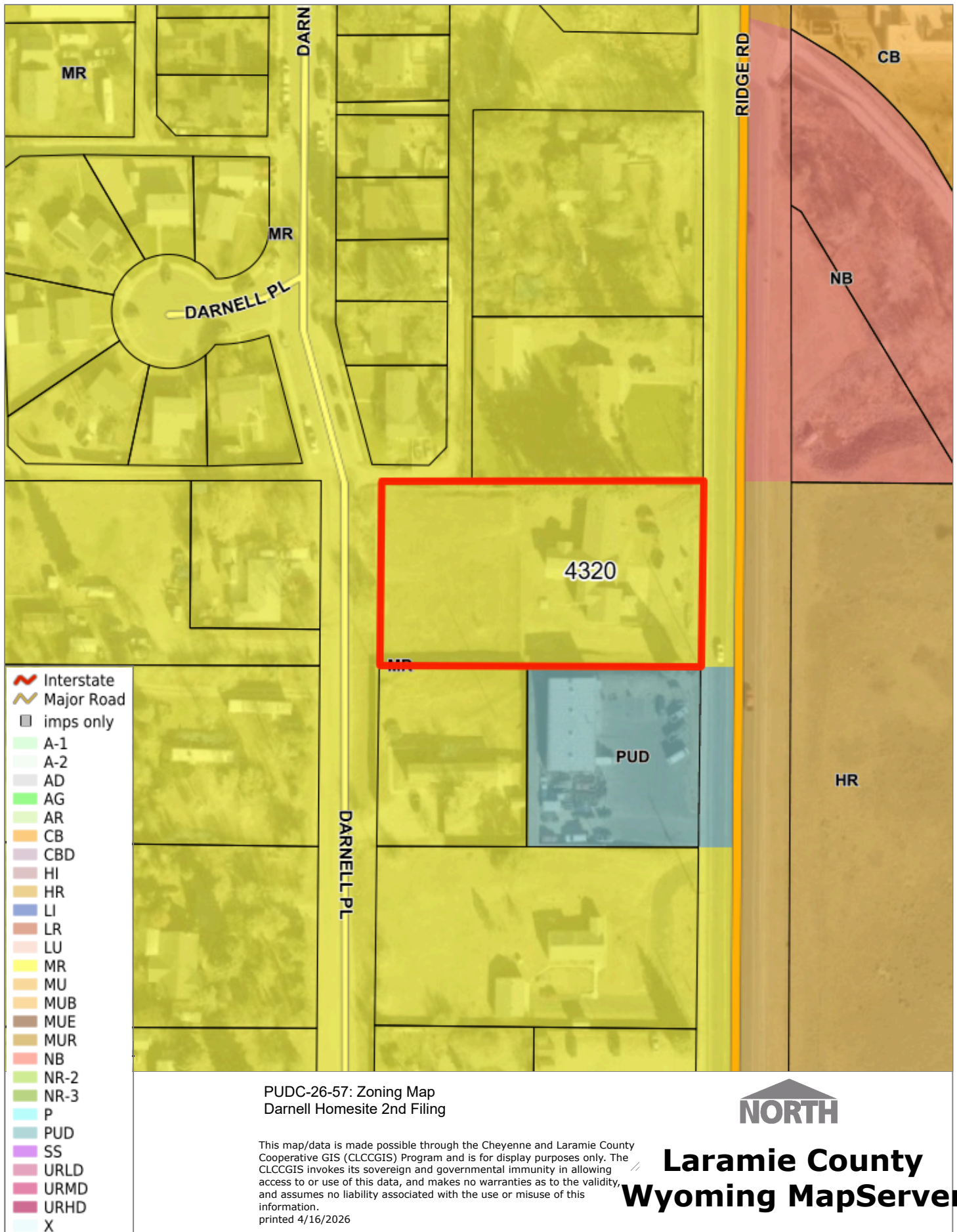
STAFF RECOMMENDATION:

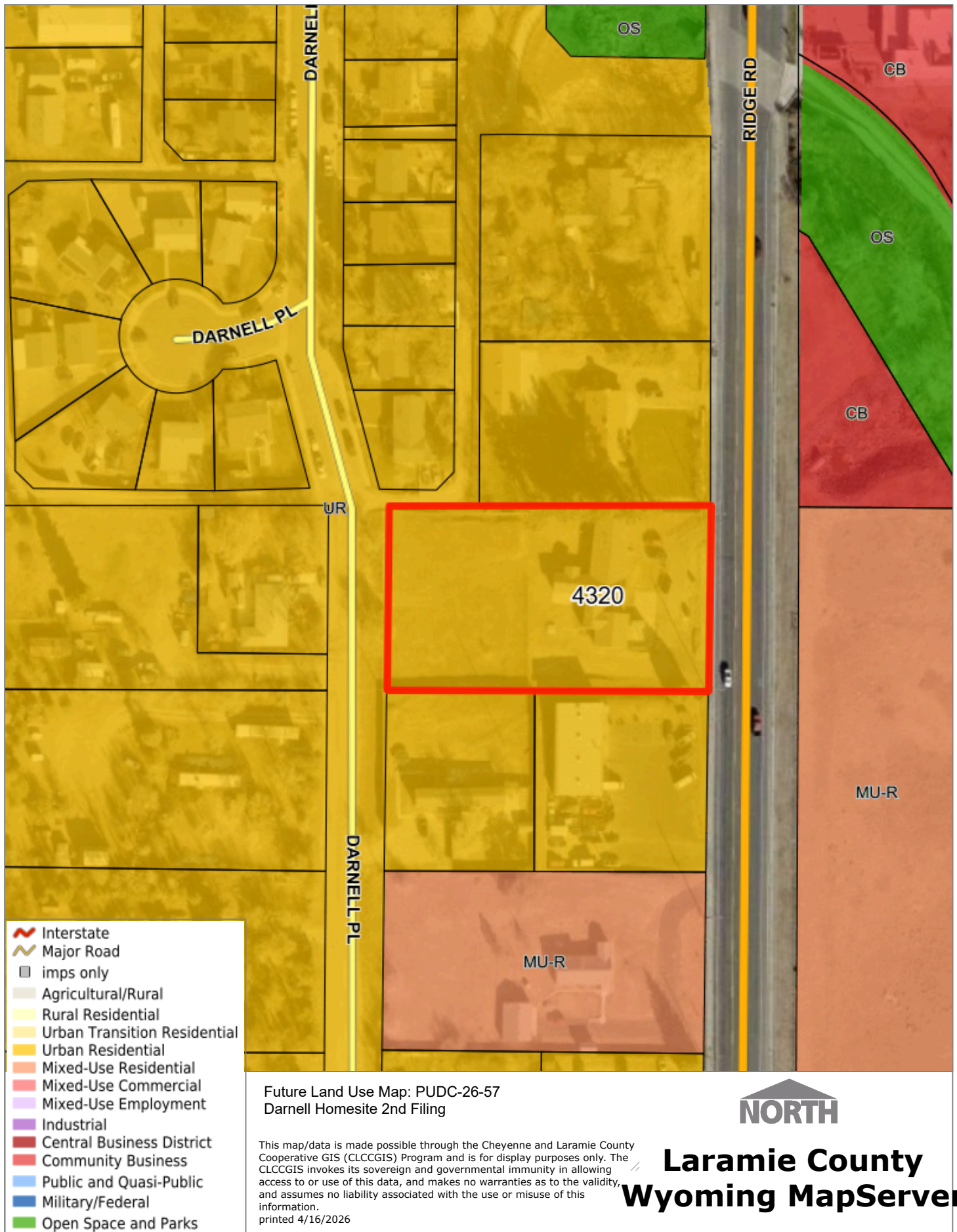
Staff recommends approval of the expedited Preliminary Plat, advancing the Final Plat to the Governing Body with conditions.

2. Water and sewer service line easement needs to meet Board of Public Utilities' request for a wider easement.

ATTACHMENTS:

1. Zoning Map
2. Land Use Plan Map
3. Master Application Form
4. Preliminary Plat
5. Final Plat





Record No: PUDC-26-57

Plat – Expedited

Status: Active

Submitted On: 3/13/2026

Primary Location

4320 RIDGE RD
Cheyenne, WY 82001

Owner

NETTFORD PROPERTIES LLC
1715 VAN LENNEN AVE CHEYENNE, WY 82001-4637

Application Information

This application has a deadline. The deadline is the second Wednesday of the month.
Application Schedule.

An expedited review is when both a preliminary and final plat are submitted to the Planning Commission together. To be eligible for expedited review the preliminary plat shall contain no significant planning, design, and engineering issues. Upon determination by staff, the applicant may submit a preliminary and final plat to the Planning Commission.*

☒

I acknowledge the that Expedited status is not guaranteed.*

☒

Written Statement* ?

We are proposing to plat 5 lots total. 4 DD7 lots fronting Darnell Place. The existing dwelling will be divided with appropriate rear setback. The lots will be roughly 40'x120'.

Project Name* ?
Orchard Park

Plat Title* ?
Orchard Park

Current Subdivision* ?DARNELL HOMESITES: LOT 1, BLOCK
2**Project area (acres)***

1.02

Proposed Lots* ?

5

Pre-application Meeting Date

03/05/2026

Park Fees are due at time of signing of the final plat mylar (see UDC 4.2.5). I acknowledge that this plat may be required to pay plat-level Park Fees.*



Public Improvements are required with platting actions. Please select the option that best demonstrates your intent for the public streets and other infrastructure adjacent to or within the plat boundary.* ?

Owner(s) (or developers) behind the plat application will construct the needed infrastructure.

Review Criteria

The following review criteria are found in the UDC regarding a Preliminary Plat. Please acknowledge the proposed plat meets each review criterion by checking the box.

The application is in accordance with the development policies and physical patterns identified in the Comprehensive Plan (2.1.2.d.1).*



The application reflects sound planning and urban design principles with respect to existing and potential future development in the vicinity, including consideration of current and future streets, open spaces, blocks and lots, and public utilities or facilities (2.1.2.d.2).*



The division of land meets the purposes, intent, and all applicable standards in Article 4 (2.1.2.d.3).*



Any phasing proposed in the application is clearly indicated and demonstrates a logical and wellplanned development pattern. This may include consideration of amenities and public facilities of the subdivision within each phase compared to the anticipated timing or the likelihood of future phases being constructed as planned (2.1.2.d.4).*



The impacts identified in specific studies or technical reports that were prepared or requested to be prepared in association with the application, and whether the findings and recommendations of these reports, or any modifications or conditions on approval of the application, can mitigate these impacts (2.1.2.d.5).*



Lots proposed for development shall be buildable lots according to the existing or proposed zoning district standards, result in site design and development patterns that meet the Intent and Applicability statements of the existing or proposed zoning district, and not aggravate nonconforming setbacks or currently adopted building and fire code access and separation requirements (2.1.2.d.6).*



All parcels not proposed as buildable lots and which are not dedicated to and accepted by the City shall have a clearly defined entity responsible for ongoing maintenance (2.1.2.d.7).*



The application will not create any undue influence on existing or potential development for adjacent property considering the existing zoning and Comprehensive Plan policies for that property (2.1.2.d.8).*



The application is not harmful to the public health, safety, and welfare (2.1.2.d.9).*



Remainder lot(s) shall be clearly identified on the preliminary plat and shall not be developed or proposed for development for purposes. Remainder lot(s) shall be noted and described on all plats either graphically or by legal description (2.1.2.d.10).*



The following review criteria are found in the UDC regarding a Final Plat. Please acknowledge the proposed plat meets each review criterion by checking the box.

The layout and design of the final plat is in substantial compliance with the approved preliminary plat considering the number of lots or parcels, street and block layout, and access, and any deviations in the final plat brings the application in further compliance with the Comprehensive Plan (2.1.3.d.1).*



The application meets any conditions or modifications of the approved preliminary plat (2.1.3.d.2). (Not applicable at time of application for an expedited plat)

The application meets the purposes, intent, and applicable standards of Article 4 (2.1.3.d.3).*



Certification

I hereby certify that I am the owner, applicant, or agent named herein and that I have familiarized myself with the rules and regulations with respect to the filing of this application and that the foregoing statements and answers contained on this application and accompanying documents are true and accurate to the best of my knowledge.*



Brandon Swain

Mar 13, 2026

Attachments



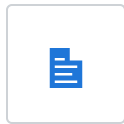
Utility Plan

Orchard transportation and utilities.jpg

Uploaded by Brandon Swain on Mar 13, 2026 at 9:38 AM

REQUIRED

	26155 EXP PLAT-PAPER.pdf 26155 EXP PLAT-PAPER.pdf Uploaded by Brandon Swain on Mar 13, 2026 at 12:03 PM	
	PUDC-26-57 Schedule Letter 26-57 Application Letter.pdf Uploaded by Morgan Dennis on Mar 16, 2026 at 2:46 PM	
	26155 EXP PLAT-3-26-26.pdf 26155 EXP PLAT-3-26-26.pdf Uploaded by Shane Hansen on Mar 26, 2026 at 8:37 AM	
	26155 EXISTING CON-PAPER.pdf 26155 EXISTING CON-PAPER.pdf Uploaded by Shane Hansen on Mar 26, 2026 at 8:37 AM	
	26155 EXP PLAT-4-7-26.pdf 26155 EXP PLAT-4-7-26.pdf Uploaded by Shane Hansen on Apr 7, 2026 at 7:28 AM	
	IMG_2938.jpeg IMG_2938.jpeg Uploaded by Brandon Swain on Apr 24, 2026 at 9:04 AM	
	IMG_2940.jpeg IMG_2940.jpeg Uploaded by Brandon Swain on Apr 24, 2026 at 9:06 AM	
	Letter of Authorization letterofauthorization (1).pdf Uploaded by Brandon Swain on Mar 13, 2026 at 10:07 AM	REQUIRED
	Preliminary Plat Map orchard park open space.pdf Uploaded by Brandon Swain on Mar 13, 2026 at 10:06 AM	REQUIRED
	Final Plat Map orchard park open space.pdf Uploaded by Brandon Swain on Mar 13, 2026 at 10:06 AM	REQUIRED
	Open Space Approach orchard park open space.pdf Uploaded by Brandon Swain on Mar 13, 2026 at 10:06 AM	REQUIRED
	Drainage Worksheet / Study orchard drainage.pdf Uploaded by Brandon Swain on Mar 13, 2026 at 9:02 AM	REQUIRED

**Transportation Workscheeth / Study**

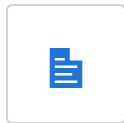
transportationworksheetudc201411131212558720.pdf

Uploaded by Brandon Swain on Mar 13, 2026 at 10:00 AM

REQUIRED**Transportation Network Plan**

Orchard transportation and utilities.jpg

Uploaded by Brandon Swain on Mar 13, 2026 at 9:36 AM

REQUIRED**Comment Letter**

PUDC-26-57 Comment Letter (1).pdf

Uploaded by Morgan Dennis on Apr 15, 2026 at 8:19 AM

 2 Versions

